

Smt. Shobha W/O Ishwarappa Gorabal vs Smt. Kashawwa W/O Vithal Khanagavi on 8 November, 2023

-1-

NC: 2023:KHC-D:13034
RSA No. 5034 of 2011

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 8TH DAY OF NOVEMBER, 2023

BEFORE

THE HON'BLE MRS JUSTICE K.S.HEMALEKHA
REGULAR SECOND APPEAL NO.5034 OF 2011 (PAR)

BETWEEN:

1. SMT. SHOBHA W/O. ISHWARAPPA GORABAL,
AGE: 27 YEARS, OCC: HOUSEHOLD WORK AND AGRIL.,
R/O. HITTANGAGI, TQ. SAUNDATTI, DIST. BELAGAVI.
2. SMT. SAVAKKA FAKIRAPPA HEMBADI,
AGE: 29 YEARS, OCC: HOUSEHOLD AND AGRIL.,
R/O. ARLIKATTI, TQ: BELAGAVI, NOW AT BELAWADI,
3. SMT. IRAWWA FAKIRAPPA HEMBADI,
AGE: 27 YEARS, OCC: HOUSEHOLD,
R/O. BELAVADI, TQ. BAILHONGAL,
4. SMT. YALLAWWA W/O. IRAPPA RODASHI,
AGE: 57 YEARS, OCC: AGRICULTURE,
R/O. BELAVADI, TQ. BAILHONGAL.

...APPELLANTS

Digitally
signed by
VISHAL
NINGAPPA
PATTIHAL
Date:
2023.11.16
11:02:45
+0530

(BY SRI. MALLIKARJUNSWAMY B. HIREMATH, ADVOCATE)

AND:

1. SMT. KASHAWWA W/O VITHAL KHANAGAVI,
AGE: 52 YEARS, OCC: AGRICULTURE,
R/O. NEGINAHAL, TQ. BAILHONGAL,
DIST. BELAGAVI.

2. SRI. PARASAPPA DHAREPPA ROADSHI,
SINCE DEAD BY HIS LRS

2A BASAPPA S/O. PARASAPPA ROSDHI

AGE: MAJOR, OCC: AGRICULTURE,
R/O. TURMARI, TQ. BAILHONGAL,

-2-

NC: 2023:KHC-D:13034
RSA No. 5034 of 2011

DISTRICT. BELAGAVI.

- 2B DHAREPPA S/O. PARASAPPA ROSDHI
AGE: MAJOR, OCC: AGRICULTURE,
R/O. TURMARI, TQ. BAILHONGAL,
DISTRICT. BELAGAVI.
- 2C ANNAVVA D/O. PARASAPPA ROSDHI KAUJALAGI
AGE: MAJOR, OCC: AGRICULTURE,
R/O. TURMARI, TQ. BAILHONGAL,
DISTRICT. BELAGAVI.
- 2D DODDAWWA W/O. SURESH KOUJALAGI,
AGE: MAJOR, OCC: AGRICULTURE,
R/O. TURMARI, TQ. BAILHONGAL,
DISTRICT. BELAGAVI.
3. SRI. YALLAPPA DHAREPPA ROADSHI,
AGE: 50 YEARS, OCC: AGRICULTURE,
R/O. BELVADI, TALUK BAILHONGAL.
4. THE STATE OF KARNATAKA,
REPRESENTED BY DEPUTY COMMISSIONER,
BELAGAVI.

...RESPONDENTS

- (BY SRI. A. F. PATTHAL, ADVOCATE FOR R1;
SRI. V. S. KALASURMATH, (AGA) FOR R4;
NOTICE TO R2 (A TO D) AND R3 IS SERVED)

THIS REGULAR SECOND APPEAL IS FILED U/SEC.100 OF CPC.,
AGAINST THE JUDGEMENT & DECREE DTD:16-11-2010 PASSED IN
R.A.NO.158/2010 ON THE FILE OF THE PRINCIPAL DISTRICT JUDGE,
BELAGAVI, PARTLY ALLOWING THE APPEAL, FILED AGAINST THE
JUDGMENT DTD:10-03-2010 AND THE DECREE PASSED IN
O.S.NO.08/2007 ON THE FILE OF THE SENIOR CIVIL JUDGE,
ASSISTANT SESSIONS JUDGE, AND MEMBER, ADDL. MACT,
BAILHONGAL, PARTLY DECREETING THE SUIT FILED FOR PARTITION
AND SEPARATE POSSESSION.

-3-

NC: 2023:KHC-D:13034
RSA No. 5034 of 2011

THIS REGULAR SECOND APPEAL, COMING ON FOR FINAL HEARING, THIS DAY, THE COURT DELIVERED THE FOLLOWING:

JUDGMENT

Though, the matter is listed for admission with consent of learned counsel on both sides, the matter is taken up for final disposal.

2. The appeal is admitted on 08.11.2023 to consider the following substantial question of law:

"Whether the First Appellate Court was justified in modifying the Judgment and decree of the Trial Court and refusing to grant share in item Nos.3 to 8 and house properties as mentioned in the suit schedule "A" properties ?"

3. Sri. Mallikarjunswamy B. Hiremath learned counsel for the appellants and Sri. A. F. Patthal and Sri. V. S. Kalasurmam learned counsel appearing for the respondents have been heard on the substantial question of law framed by this Court.

4. The parties herein are referred to as per their rankings before the Trial Court for the sake of convenience.

5. Brief facts of the case are as under:

NC: 2023:KHC-D:13034 The family pedigree is as mentioned below:

Dhareppa Yallappa Ramappa Dhareppa Irappa Yallawwa Gangawwa Wife Wife (Plt No. 4) (Deft No. 1) Yallappa Parasappa Irawwa Savakka Shobha Kashawwa (Defnt No.4) (Defnt.3) (Plt-3) (Plt No. 2) (Plt No.1) (Deft-2) Plaintiff Nos.1 to 3 are the children of one Irappa through his wife plaintiff No.4-Yallawwa. It is the contention of the plaintiffs that the suit schedule properties as mentioned in Schedule-"A", item Nos.1 and 2 are the properties acquired by Irappa and item Nos.3 to 8 are the joint family properties of the plaintiffs and defendant Nos.1 and 2. It is averred in the plaint that plaintiff Nos.1 to 3 and defendant Nos.1 and 2 have succeeded to the suit item Nos.1 and 2 and half share of Irappa in Item Nos.3 to 8 and in remaining half share the other branch of Dareppa, who are defendant Nos.3 and 4 are entitled.

NC: 2023:KHC-D:13034

6. Pursuant to the suit summons issued by the Trial Court defendant Nos.1 and 2 appeared and filed their written statement, inter alia denying about the marriage of plaintiff No.4 with deceased Irappa and contended that the plaintiff No.4 was married with one Fakirappa Bajani and there is no relationship of the plaintiff No.4 with that of Irappa and neither the plaintiff Nos.2 to 4 are the children of Irappa.

7. The Trial Court on the basis of the pleadings framed the following:

ISSUES

1. "Whether the plaintiff's prove that the plaintiff No.1 to 3 are the daughters and plaintiff No.4 was the wife of deceased Irappa?
2. Whether the plaintiffs prove that themselves and defendant No.1 to 4 are jointly possessing the suit properties?
3. Whether the defendant No.1 & 2 prove that the plaintiff No.4 is the wife of Fakirappa Banaji of Aralikatti village and then Mallappa Gunaji @ Dalawai R/o Chachadi?
4. Whether the plaintiffs are having 1/6th share in Sy.No.419/1 measuring 2 As. 30 Gs. and Sy.No.420/3B/2B?
5. Whether the plaintiffs are having 1/12th share in schedule-A, 3 to 8 properties?

NC: 2023:KHC-D:13034

6. Whether Government is having no right or interest in schedule-A, 5, 7 & 8 properties?

7. What order or decree?"

8. In order to substantiate their claim the plaintiffs examined herself as PW.1 and 3 and three witnesses as PWs.2 to 4 and got marked documents at Ex.Ps.1 to P.87. On the other hand, defendant No.2 examined himself as DW.1 and got marked documents at Exs.D.1 and D.2. The Trial Court on the basis of the pleadings, oral and documentary evidence held that:

- 1) The plaintiffs have proved that plaintiff Nos.1 to 3 are the children and plaintiff No.4 is the wife of deceased Irappa.
- 2) That the plaintiffs proved, the suit schedule properties are the joint family properties of the plaintiffs and defendants.
- 3) That the defendant Nos.1 and 2 have failed to establish that the plaintiff No.4 is the wife of one Fakkirappa Banaji and the Trial Court arrived at a conclusion by giving a finding that plaintiff No.4 is the 2nd wife of Irappa and Gangawwa is the 1st wife.

NC: 2023:KHC-D:13034

9. Aggrieved by the Judgment and decree of the Trial Court, defendant No.1 preferred appeal before the First Appellate Court. The First Appellate Court while re-appreciating the oral and documentary

evidence, allowed the appeal in part modifying the Judgment and decree of the Trial Court holding that plaintiff Nos.1 to 3 and defendant Nos.1 and 2 are entitled for 1/5th share each in item Nos.1 and 2 of the suit property and plaintiff Nos.1 to 4 are not entitled to any share in the item Nos.3 to 8 and the house properties mentioned in the suit schedule annexed to the plaint. It is further declared that the defendants alone are entitled to item Nos.3 to 8 and the house properties mentioned in the said schedule. The findings recorded by First Appellate Court to decline to allow share in Item Nos.3 to 8 of suit schedule properties was in the light of Section 16 of the Hindu Marriage Act, 1955 and the proposition that stood as on the date of the judgment regarding the right of the children born from void or voidable marriage.

10. The recent decision of the Apex Court of the larger Bench in the case of Revanasiddappa and Another Vs. NC: 2023:KHC-D:13034 Mallikarjun and Others¹ has held at paragraph No.54 as under:

"54. We now formulate our conclusions in the following terms:

i. In terms of sub-section (1) of Section 16, a child of a marriage which is null and void under Section 11 is statutorily conferred with legitimacy irrespective of whether (i) such a child is born before or after the commencement of Amending Act 1976; (ii) a decree of nullity is granted in respect of that marriage under the Act and the marriage is held to be void otherwise than on a petition under the enactment;

ii. In terms of sub-section (2) of Section 16 where a voidable marriage has been annulled by a decree of nullity under Section 12, a child 'begotten or conceived' before the decree has been made, is deemed to be their legitimate child notwithstanding the decree, if the child would have been legitimate to the parties to the marriage if a decree of dissolution had been passed instead of a decree of nullity;

iii. While conferring legitimacy in terms of sub-section (1) on a child born from a void marriage and under sub-section (2) to a child born from a voidable marriage which has been annulled, the legislature has stipulated in sub-section (3) of Section 16 that such a child will have rights to or in the property of the parents and not in the property of any other person.

iv. While construing the provisions of Section 3(1)(j) of the HSA 1956 including the proviso, the legitimacy which is conferred by Section 16 2023 SCC OnLine SC 1087 NC: 2023:KHC-D:13034 of the HMA 1955 on a child born from a void or, as the case may be, voidable marriage has to be read into the provisions of the HSA 1956. In other words, a child who is legitimate under sub-section (1) or sub-section (2) of Section 16 of the HMA would, for the purposes of Section 3(1)(j) of the HSA 1956, fall within the ambit of the explanation 'related by legitimate kinship' and cannot be regarded as an 'illegitimate child' for the purposes of the proviso;

v. Section 6 of the HSA 1956 continues to recognize the institution of a joint Hindu family governed by the Mitakshara law and the concepts of a coparcener, the acquisition of an interest as a coparcener by birth and rights in coparcenary property. By the substitution of Section 6, equal rights have been granted to daughters, in the same manner as sons as indicated by sub-section (1) of Section 6;

vi. Section 6 of the HSA 1956 provides for the devolution of interest in coparcenary property. Prior to the substitution of Section 6 with effect from 9 September 2005 by the Amending Act of 2005, Section 6 stipulated the devolution of interest in a Mitakshara coparcenary property of a male Hindu by survivorship on the surviving members of the coparcenary. The exception to devolution by survivorship was where the deceased had left surviving a female relative specified in Class I of the Schedule or a male relative in Class I claiming through a female relative, in which event the interest of the deceased in a Mitakshara coparcenary property would devolve by testamentary or intestate succession and not by survivorship. In terms of sub-section (3) of Section 6 as amended, on a Hindu dying after the commencement of the Amending Act of 2005 his interest in the property

- 10 -

NC: 2023:KHC-D:13034 of a Joint Hindu family governed by the Mitakshara law will devolve by testamentary or intestate succession, as the case may be, under the enactment and not by survivorship. As a consequence of the substitution of Section 6, the rule of devolution by testamentary or intestate succession of the interest of a deceased Hindu in the property of a Joint Hindu family governed by Mitakshara law has been made the norm;

vii. Section 8 of the HSA 1956 provides general rules of succession for the devolution of the property of a male Hindu dying intestate. Section 10 provides for the distribution of the property among heirs of Class I of the Schedule. Section 15 stipulates the general rules of succession in the case of female Hindus dying intestate. Section 16 provides for the order of succession and the distribution among heirs of a female Hindu;

viii. While providing for the devolution of the interest of a Hindu in the property of a Joint Hindu family governed by Mitakshara law, dying after the commencement of the Amending Act of 2005 by testamentary or intestate succession, Section 6 (3) lays down a legal fiction namely that 'the coparcenary property shall be deemed to have been divided as if a partition had taken place'. According to the Explanation, the interest of a Hindu Mitakshara coparcener is deemed to be the share in the property that would have been allotted to him if a partition of the property has taken place immediately before his death irrespective of whether or not he is entitled to claim partition;

ix. For the purpose of ascertaining the interest of a deceased Hindu Mitakshara coparcener, the law mandates the assumption of a state of affairs

- 11 -

NC: 2023:KHC-D:13034 immediately prior to the death of the coparcener namely, a partition of the coparcenary property between the deceased and other members of the coparcenary. Once the share of the deceased in property that would have been allotted to him if a partition had taken place immediately before his death is ascertained, his heirs including the children who have been conferred with legitimacy under Section 16 of the HMA 1955, will be entitled to their share in the property which would have been allotted to the deceased upon the notional partition, if it had taken place; and x. The provisions of the HSA 1956 have to be harmonized with the mandate in Section 16(3) of the HMA 1955 which indicates that a child who is conferred with legitimacy under sub-sections (1) and (2) will not be entitled to rights in or to the property of any person other than the parents. The property of the parent, where the parent had an interest in the property of a Joint Hindu family governed under the Mitakshara law has to be ascertained in terms of the Explanation to sub- section (3), as interpreted above."

11. In the case of *Revanasiddappa*¹ the Apex Court dealt with the complex issue of the legitimacy and property rights of children born from void or voidable marriages. The Apex Court discussed various provisions of the Hindu Marriage Act, 1955 ("HMA, 1955" for short) and the Hindu Succession Act, 1956 ("HSA, 1956" for short) as well as their amendments. The Court first emphasized that a child born to parents whose marriage is null and void or annulled by a decree of nullity can

- 12 -

NC: 2023:KHC-D:13034 be declared legitimate if the child would have been legitimate if the marriage had been valid. This principle was crucial in determining the child's rights. The Apex Court noted that there had been differing interpretations of Section 16(3) of the HMA 1955, which specifies that children born from such marriages are entitled to the property of their parents but not of any other relations. The Apex Court held that children conferred with legitimacy under Section 16(1) or 16(2) of the Hindu Marriage Act, 1955 have rights similar to legitimate children and can claim a share in the property of their parents. However, they are not entitled to property belonging to any other person.

12. Further, the Apex Court has taken into consideration that the 2005 amendment of Section 6 of the Hindu Succession Act, 1956, which granted daughters equal co- parcenary rights as sons in Mitakshara joint Hindu families. This change aimed to promote gender equality and recognized daughters as coparceners from birth. In conclusion, the Apex Court clarified the property rights of children born from void or voidable marriages, emphasizing their entitlement to their parents' property while excluding property belonging to others. It also highlighted the importance of gender equality in the

- 13 -

NC: 2023:KHC-D:13034 context of co-parcenary rights in Hindu joint families governed by Mitakshara law.

13. In light of the proposition of law stated supra by the Apex Court, reverting to the facts of the case, the plaintiffs being born to Irappa from his 2nd wife Yallawwa, the plaintiffs are entitled for share in the properties left behind by Irappa. Item Nos.1 and 2 of schedule - 'A' properties are the exclusive properties of Irappa and item Nos.3 to 8 are the joint family properties, wherein the deceased Irappa was entitled for half share.

14. In the case of *Revanasiddappa*¹ stated supra the Apex Court at paragraph No.43 has given an example as to how the shares needs to be divided, when there are four coparceners-C1, C2, C3, and C4. C2 has died. C2 is survived by a widow, a son, and a daughter but it so transpires that one of the children is born from a marriage which is null and void under Section 11 of the HMA 1955. C2 would have a 1/4th share in the co-parcenary which consisted of him and his three brothers' C1, C3 and C4. Now, in order to ascertain C2's share in the property and the devolution of this shares among C2's heirs, the Explanation mandates an assumption that a partition

- 14 -

NC: 2023:KHC-D:13034 took place immediately before C2's death. In such a partition, between him and his brothers, C2 gets 1/4th share in the larger co-parcenary comprising himself and his 3 brothers. Now, within his own branch. C2 his widow and his child born from a valid marriage would each have a 1/3rd share. In other words, in the notional partition which is deemed to have taken place in terms of the Explanation the share of C2 is ascertained at 1/3rd share. In working out the devolution of interest and the distribution of property following the death of C2. C2's 1/3rd share would be equally distributed between his widow, child born from the marriage which was valid and the child born from the marriage whose legitimacy is protected by Section 16(1) of the HMA 1955 though the marriage was null and void. In other words, such a child would have a share in the property which would be allotted to his parent (C2) if a partition had taken place immediately before the death of C2. The widow would get a 1/3rd share (her share in the notional partition) plus 1/3rd in the 1/3rd share of C2 (her share in succession, as an heir to C2). The child who was born from the valid marriage would acquire a 1/3rd share plus a 1/3rd share in C2's 1/3rd share. The child who has the benefit of Section 16(1) of the HMA 1955

- 15 -

NC: 2023:KHC-D:13034 acquires a 1/3rd share in the 1/3rd share which was allotted to C2 presuming that the partition has taken place immediately before the death of C2. This child, unlike the child born out of a lawful marriage, is not entitled to a share in the notional partition itself. After the father's share is determined in such notional partition, a child whose legitimacy is protected under Section 16(1) and 16(2) will have a share in the father's share, along with the surviving widow and the other children. This, was held as correct and proper interpretation of the Explanation to Section 6 which mandates the assumption of a notional state of affairs namely, a partition immediately before the death of the Hindu male coparcener.

15. In the said circumstances, in the instant case Irappa had two wives namely Gangawwa and Yallawwa, Gangawwa - defendant No.1 was declared as the 1st wife, she died during the pendency of

the suit, defendant No.2 is Kashawwa born from 1st wife Gangawwa. The plaintiffs are the children born through the 2nd wife-Yallawwa, in light of the law declared by the Apex Court, the plaintiffs born from Yallawwa are entitled for share of their parents conferring with legitimacy under Section 16(1) of the HMA, 1955 and they are entitled for

- 16 -

NC: 2023:KHC-D:13034 similar rights to that of a legitimate children and can claim share in the property of their parents. Placing reliance on the decision rendered by the Apex Court, Irappa and Kashawwa - defendant No.2 would have half share each and plaintiff Nos.1 to 3 whose legitimacy is protected by Section 16(1) of HMA, 1955 being the children from the 2nd wife-Yallawwa would be entitled for share in the half share of Irappa's property.

16. Schedule - 'A', item Nos.1 and 2 are the self acquired properties of Irappa, in light of the same, the plaintiff Nos.1 to 3 and defendant No.2 would be entitled for 1/4th share each in view of death of Gangawwa - defendant No.1. In the co-parcenary property at item Nos.3 to 8 and house properties, Irappa had half share and remaining half share belongs to the family of defendant Nos.3 and 4, in the partition between Irappa and Kashawwa - defendant No.2, Irappa and Kashawwa would be entitled for 1/4th share each. In 1/4th share of Irappa, plaintiff Nos.1 to 3 are entitled for share and that would be 1/16th share and defendant No.2 would be entitled for 1/4th share + 1/16th share.

17. For the foregoing reasons the substantial question of law answered accordingly and this Court pass the following:

- 17 -

NC: 2023:KHC-D:13034 ORDER

i) The Regular Second Appeal is allowed.

ii) The Judgment and decree of the Courts below stands modified holding that the plaintiff Nos.1 to 3 are entitled for 1/4th share in suit item Nos.1 and 2 of Schedule -

'A' property, further plaintiff Nos.1 to 3 are entitled for 1/16th share and defendant No.2 is entitled for 1/4th + 1/16th share in suit item Nos.3 to 8 and house properties of schedule 'A' properties.

Sd/-

JUDGE PJ/Ct-Umd